

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0003775

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: RADU MIHAILA

vs.

DEFENDANT: ULTRAGENYX
PHARMACEUTICAL, INC.

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR
PROGRAM

RULING

The hearing on the motion to compel is continued to **September 29, 2026, at 1:30 pm** to be heard in connection with Plaintiff's motion for relief pursuant to Section 473 of the Code of Civil Procedure.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyailnzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/22/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0003899

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: KEVIN DUGEN ET AL.

VS.

DEFENDANT: CATALYST HOUSING
GROUP, LLC, ET AL.

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff's motion to compel is **GRANTED**. Defendants are compelled to produce the timeline of events reviewed by Ms. Sowa within 5 days of the hearing on this matter, and to produce a declaration or verified discovery response regarding their efforts to locate the other documents identified in Plaintiff's motion within 10 days of the hearing. Plaintiff's request for sanctions in the amount of \$5,882.50 is **GRANTED**.

Plaintiff's Arguments in Support of his Motion

Plaintiff Kevin Dugen moves to compel the production of documents he requested in a notice of deposition for Holly Sowa, the Director of Real Estate of Defendant Greystar California, Inc.'s ("Greystar"). Greystar did not serve objections to any of the document requests. Ms. Sowa appeared for her deposition but did not produce any documents. During the deposition, Ms. Sowa testified that she reviewed a timeline of events to prepare to her deposition, which timeline was prepared in 2024 by Likica Grceva, a Greystar regional manager. Greystar's counsel claimed that this document was privileged and instructed Ms. Sowa not to produce it even though it was not prepared by counsel and has not been identified on a privilege log. Plaintiff argues that the timeline is not privileged and must be produced.

Ms. Sowa also testified that Greystar maintains written standard operating procedures ("SOP") governing the handling of tenant complaints, mold remediation, water-leak complaints, unit pre-leasing inspection, and resident inspection, as well as training materials on these topics. Ms. Sowa explained that these documents were in an electronic system and undertook to have them rendered in a producible form. Greystar's counsel agreed to produce these documents but